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Case Summary Report

User Problem: The user claims their brother has expelled them from their home and illegally occupied it. The property is co-owned by the user and their brother, inherited from their parents, and the user has been out of the house for three weeks.

Case Category: property_dispute

Confidence: 100%

Rights Summary:

- * Right to co-ownership and joint possession of inherited property.
- * Right to protection against illegal dispossession.
- * Right to seek legal remedies for trespass and wrongful occupation.

Readiness Score: 73%

Readiness Breakdown:

- * Documentation: User has registry and 'fard' (land record) for the property, which is excellent.
- * Witness/Evidence: Not specified if witnesses or other evidence are available.
- * Legal Consultation: User consulted a lawyer, but received discouraging advice.
- * Urgency: High, as the user is currently dispossessed.

Missing Documents:

- * No specific missing documents identified, as the user possesses the registry and fard.

Key Risks Highlighted:

- * Lawyer's discouraging advice: The lawyer's claim that the case is difficult and the brother might keep the house, coupled with a demand for 10 lac to transfer the house, raises a significant red flag for potential misconduct or misguidance. This needs to be thoroughly investigated.
- * Risk of prolonged legal battle: Property disputes, especially within families, can be lengthy and emotionally draining.
- * Potential for further damage to family relations.

Retrieved Statutory Laws and Court Procedures:

1. The Specific Relief Act, 1877:

- * Section 8: "Suit by person dispossessed of immovable property." This section allows a person dispossessed of immovable property to recover possession by instituting a suit within six months of the dispossession, even against the true owner, if dispossessed otherwise than in due course of law. In this case, since the user is a co-owner, they have a strong claim for recovery of possession.
- * Section 9: "Suit for possession by person dispossessed of immovable property." This section specifically deals with a person dispossessed of immovable property without their consent, otherwise than in due course of law, who may recover possession thereof, notwithstanding any other title that may be set up in such suit.

2. The Pakistan Penal Code, 1860:

* Section 441: "Criminal trespass." Whoever enters into or upon property in the possession of another with intent to commit an offense or to intimidate, insult or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with such intent, is said to commit criminal trespass. This could apply if the brother's actions constitute an unlawful entry or unlawful remaining with malicious intent.

* Section 447: "Punishment for criminal trespass." This section prescribes imprisonment for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both.

* Section 506: "Punishment for criminal intimidation." If the brother used threats to dispossess the user, this section might be applicable.

3. The Transfer of Property Act, 1882:

* Section 44: "Transfer by one co-owner." This section states that where one of two or more co-owners of immovable property legally transfers his share thereof, the transferee acquires, as against the other co-owners, the same rights and is subject to the same liabilities as the transferor had or was subject to at the date of the transfer. This reinforces the user's right as a co-owner.

4. Civil Procedure Code, 1908:

* Order XXI, Rule 35: "Decree for immovable property." This rule deals with the execution of a decree for the possession of immovable property. A court can order the delivery of possession to the decree-holder.

* Order XXXIX, Rules 1 & 2: "Temporary injunctions." These rules allow a court to grant temporary injunctions in suits, including those relating to property disputes, to prevent wrongful dispossession or damage to property during the pendency of the suit.

5. Qanun-e-Shahadat Ordinance, 1984:

* Article 118: "Burden of proof." Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts, must prove that those facts exist. The user would need to prove their co-ownership and dispossession.

Court Procedures:

* Filing a Civil Suit: The primary course of action would be to file a civil suit for possession and mesne profits in the court of competent civil jurisdiction. This would typically involve filing a plaint, serving notice to the brother, presenting evidence, and arguments.

* Application for Interim Relief: Along with the civil suit, an application for a temporary injunction under Order XXXIX, Rules 1 & 2 of the CPC can be filed to seek immediate relief from dispossession or to prevent the brother from further altering the property.

* Registration of FIR: Depending on the specifics of the dispossession (e.g., use of force, threats), an application for the registration of a First Information Report (FIR) under relevant sections of the PPC (like criminal trespass or intimidation) can be made at the local police station. However, for property disputes, civil remedies are usually preferred.

* Declaratory Suit: If there is any ambiguity about the ownership or shares, a declaratory suit can be filed to declare the user's rights to the property.

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